

Court No. - 34

Case :- WRIT - C No. - 6985 of 2019

Petitioner :- Yashpal

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Dinesh Kumar Singh

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble Sudhir Agarwal,J.

Hon'ble Rajendra Kumar-IV,J.

1. Heard Sri Dinesh Kumar Singh, learned counsel for the petitioner and learned Standing Counsel for the State.
2. From the record it is evident that petitioner was indulged in theft of electrical energy and also convicted and sentenced vide order dated 23.5.2016 passed by Special Judge (E.C. Act)/Additional District and Sessions Judge, Room No. 5, Saharanpur. It is also evident that the petitioner has electrical connection being connection no. D.B.6-0708-080566 which is of commercial with 5 K.W. contracted load and on page 33 of paper book is a copy of bill which shows that there are outstanding amount of Rs. 5,84,221.00/-, last date of payment which was 20th March, 2017.
3. Executive Engineer's letter dated 19.11.2018 has said that amount has increased to Rs. 8,16,938/-. Executive Engineer has also required petitioner to show any documents or receipt if any payment is made, but no such document has been placed.
4. Learned counsel for the petitioner did not dispute that petitioner has statutory alternative remedy of raising his grievance in respect of electricity dues before Consumer Grievance Redressal Forum under para 7.10(i) of Electricity Supply Code, 2005 (hereinafter referred to as 'Code') read with U.P.E.R.C. (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003 (hereinafter referred to as

'Regulations, 2003') and thereafter, remedy is provided before Ombudsman under para 7.10 (iv) of the Code read with Regulations, 2003. He also could not substantiate any argument so as not to relegate the petitioner to avail aforesaid alternative remedy.

5. In view thereof, this writ petition is dismissed on the ground of alternative remedy.

Order Date :- 1.3.2019

Manoj